

PLJ 2021 Lahore 787
[Multan Bench, Multan]

Present: JAWAD HASSAN, J.

IMAM BAKHSH--Petitioner

versus

DISTRICT COLLECTOR, DERA GHAZI KHAN and 5 others--Respondents

W.P. No. 3754 of 2021, decided on 11.3.2021.

Constitution of Pakistan, 1973--

---Arts. 23, 24 & 199--Writ of mandamus--Leasing of land--Illegal encroachment--Establishment of water canal over land by Provincial Government--Direction to--Petitioner obtained land in question on lease by Provincial Government after completing all codal/legal formalities but Respondents No. 5 and 6 have made illegal encroachment over said land by establishing a water channel over it. In this regard, Petitioner has time and against approached concerned authorities but without any positive response, hence, he has knocked door of this Court--He, lastly, submits that Petitioner would be satisfied if matter be referred to Respondent No. 2 with a direction to decide same in accordance with law, within a reasonable period of time--Copy of this writ petition alongwith all annexures be remitted to Respondent No. 2 who will consider it as a representation of Petitioner and decide issue in hand after providing proper hearing to all concerned including Petitioner as well as Respondents No. 5 and 6, strictly in accordance with applicable law--Petition disposed of. [Pp. 788 & 789] A, B & C

Sardar Ashfaq Ahmad Khan Balouch, Advocate for Petitioner.

Mr. Azhar Saleem Kamlana, AAG (on Court call).

Date of hearing: 11.3.2021.

ORDER

The Petitioner has filed this writ of mandamus under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") to direct the Respondents No. 1 to 3, to do, what they are required by law to do, and in this case to remove illegal encroachments made by the Respondents No. 5 and 6 over his land, description of which is given in Para-2 of this petition.

2. Learned counsel for the Petitioner submits that the Petitioner obtained the land in question on lease by the Provincial Government after completing all the codal/legal formalities but the Respondents No. 5 and 6 have made illegal encroachment over the said land by establishing a water channel over it. In this regard, the Petitioner has time and against approached the concerned authorities but without any positive response, hence, he has knocked the door of this Court. He has drawn attention of the Court towards the rationale recently developed by the Hon'ble Chief Justice of Pakistan in the judgments reported as Karachi Circular Railway and Local Train in Karachi (2020 SCMR 82), Abdul Karim versus Nasir Salim Baig and others (2020 SCMR 111), Abdul Karim and another versus Nasir Salim Baig and others (2020 SCMR 121), Naimatullah Khan Advocate and others versus Federation of Pakistan and others (2020, SCMR 153), Naimatullah Khan Advocate and others versus Federation of Pakistan (2020 SCMR 513), Naimatullah Khan Advocate and others versus Federation of Pakistan and others (2020 SCMR 622), Naimatullah Khan Advocate and others versus Federation of Pakistan and others (2020 SCMR 1474), Naimatullah Khan Advocate and others versus Federation of Pakistan and

others (2020 SCMR 1488), Naimatullah Khan Advocate and others versus Federation of Pakistan and others (2020 SCMR 1499) and Naimatullah Khan Advocate and others versus Federation of Pakistan and others (2020 SCMR 1510) wherein it has been held that 'right to life was not restricted only to the prosecution of a person but the State was required to ensure that all aspects of citizens' life were protected and dealt with by the State. It has been further elaborated by the Apex Court of the Country that "right to life included the provision of drinking water; provision of electricity; provision of education; provision of health facility; provision of civic and civil infrastructure, and provision of transportation for citizens etc". He informs the Court that due to the aforesaid pronouncements of the august Supreme Court of Pakistan most of the encroachments have been removed in Karachi city.

3. He next argued that due to inaction on part of the concerned authority, the Petitioner's fundamental rights protected under Articles 23 and 24 of the Constitution are being badly infringed. He explains that Article 5(2) of the Constitution declares in unequivocal terms that everybody is bound to obey the command of the Constitution within the precincts of its power so that the persons concerned should be treated in accordance with law as interprets by Article 4 of the Constitution. He, while referring to the provisions of Article 10-A of the Constitution, further clarifies that procedural fairness from any forum or governmental authority determining civil rights/obligations of citizens will promote dispensation of justice and on the other hand, non-action or inaction on their part will disappoint the helpless people of this country; He, lastly, submits that the Petitioner would be satisfied if the matter be referred to the Respondent No. 2 with a direction to decide the same in accordance with law, within a reasonable period of time.
4. Learned Law Officer has no objection if such direction be issued to the Respondent No. 2.
5. In view of the above, a copy of this writ petition alongwith all the annexures be remitted to the Respondent No. 2 who will consider it as a representation of the Petitioner and decide the issue in hand after providing proper hearing to all concerned including the Petitioner as well as the Respondents No. 5 and 6, strictly in accordance with applicable law as well as the dictum laid down by the august Supreme Court of Pakistan in the aforesaid judgments, through a speaking order, within three weeks from the receipt of certified copy of this order.

Disposed of.

(J.K.) Petition disposed of